

Executive Engineer, Dakshinanchal Electricity Distribution Corporation Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 2 May 2024 · Writ-C No. 11464 of 2024 · **Writ admitted; affidavits directed; listed 18 July 2024**

HEADNOTE

Licensee's writ challenging a Permanent Lok Adalat electricity-bill award, on the plea that Clause 6.5 of the U.P. Electricity Supply Code, 2005 ousts PLA jurisdiction, was admitted for consideration; no merits finding.

FACTUAL SUMMARY

The Executive Engineer of Dakshinanchal Electricity Distribution Corporation Ltd. (urban distribution division) petitioned the Allahabad High Court against a Permanent Lok Adalat order dated 7 December 2023 deciding an electricity bill dispute. The licensee contended that the PLA had adjudicated without sincere conciliation under Section 22-C of the Legal Services Authorities Act, 1987, and that Clause 6.5 of the U.P. Electricity Supply Code, 2005 exclusively governs bill objections, so the PLA lacked jurisdiction. Counsel relied on this Court's order dated 20 December 2018 in Writ-C No. 39082 of 2018.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::procedural-listing

PLA jurisdiction over bill dispute — listing

HOLDING

The Court recorded that the licensee's writ against a Permanent Lok Adalat electricity-bill award, on the plea that Clause 6.5 of the U.P. Electricity Supply Code, 2005 occupies the field and that the PLA decided without conciliation under Section 22-C of the Legal Services Authorities Act, 1987, requires consideration. Time was granted for counter and rejoinder affidavits and the matter was listed on 18.7.2024. No merits finding was recorded. ¶ 2-4

PRINCIPLE TAGS

procedural-listing-no-construction

Licensee's writ challenging a Permanent Lok Adalat electricity-bill award, on the plea that Clause 6.5 of the U.P. Electricity Supply Code, 2005 ousts PLA jurisdiction, was admitted for consideration; no merits finding. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PERMANENT LOK ADALAT HAS JURISDICTION TO DECIDE AN ELECTRICITY BILL DISPUTE GIVEN CLAUSE 6.5 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 AND SECTION 22-C OF THE LEGAL SERVICES AUTHORITIES ACT, 1987

Writ admitted; merits not examined. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Writ-C No. 39082 of 2018 (Allahabad High Court, order dated 20.12.2018)</i>			1	Referred

